

**Before the
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,

v.

**ORIENT OVERSEAS CONTAINER LINE, LIMITED AND
OOCL (EUROPE) LTD.**

v.

**SAMSUNG ELECTRONICS COMPANY, LTD., SAMSUNG
ELECTRONICS LOGITECH COMPANY, LTD., AND
SAMSUNG SDS GLOBAL SCL ASIA PACIFIC PTE LTD**

**RESPONDENTS' EMERGENCY MOTION TO STRIKE AND FOR ADDITIONAL
RELIEF**

Respondents Orient Overseas Container Line, Limited and OOCL (Europe) Ltd. (“Respondents” or “OOCL”) hereby make this Emergency Motion to Strike (“Motion to Strike”) pursuant to 46 C.F.R. §§ 502.69, 502.102.

OOCL seeks an Order striking *in toto* the fifty-five (55) page Motion to Compel Discovery filed by Complainant Samsung Electronics America, Inc. (“Complainant” or “SEA”) on Friday, January 23, 2025.

Should the Presiding Officer decide not to strike SEA’s Motion in its entirety, Respondents request an equal number of pages, up to 55 to reply, including any Appendices, and to extend

Respondents' time in which to serve their reply until 7 days from the date that the Presiding Officer issues the Order resolving the Motion to Strike.

Finally, because the normal time for reply to this Motion to Strike would extend well past the date on which OOCL's response to SEA's Motion to Compel is due, Respondents request that the Presiding Officer treat this application on an emergent basis and shorten SEA's time to reply so that SEA's response is due on Wednesday, January 28, 2026.

Counsel for Respondents advised counsel for Complainant about this Motion to Strike on January 25, 2025 and sought Complainant's position in accordance with 46 C.F.R. § 502.71(a). Counsel for Complainant indicated at 11:30 p.m. on January 26, 2026 that SEA opposes the Motion to Strike and OOCL's alternative request for additional time to respond, but consents to OOCL's request to serve opposition papers that exceed the 10 page limit.

MEMORANDUM IN SUPPORT OF MOTION TO STRIKE

ARGUMENT

A. Complainant's Motion Should Be Stricken as it Exceeds the Number of Allowable Pages

The Commission's Rules of Practice and Procedure mandate that a motion to compel, as a non-dispositive motion, be limited to no more than ten pages. 46 C.F.R. 502.71. SEA has exceeded this limit many times over, filing a motion of 55 pages. Further, SEA made no effort to seek 45 additional pages by motion, either beforehand or with its jumbo filing. Accordingly, SEA's Motion to Compel should be stricken entirely due to its grossly excessive size,¹ which far exceeds the 10 pages permitted by the FMC's Rules for a non-dispositive motion. *Compare, e.g., Visual Comfort & Co. v. Cosco Shipping Lines Co., Ltd.*, 2024 WL 3514622, at *10 (ALJ Order Partial Order on

¹ We also preview the fact that SEA's certificate of consultation is at least partially misleading. SEA in fact failed to confer with Respondents on several assertions it makes in its Motion to Compel.

Motions to Compel, Motion for Entry of Protective Order, and Motion for Enlargement of Page Limits)(July 17, 2025)(allowing additional 5 pages).

We understand that Complainant plans to argue that its Motion to Compel (save signature) meets the 10-page limit, ignoring appendices. But that assertion is misleading. Apart from the fact that nothing in the FMC Rules excludes appendices from the page count, Complainant's Appendices do not merely reproduce the discovery requests and responses, which might be allowed, but rather include nearly 18 pages of *supplemental argument*. Specifically, Appendix I ("Examples of OOCL Incomplete Production") includes three pages of argument; Appendix II ("OOCL Incomplete Responses to Interrogatories") includes a total of 25 pages of argument entitled, "Why OOCL's Response is Deficient"; and Appendix III ("OOCL Incomplete Responses to Requests for Production") includes 14 pages in total with sections entitled, "Why the Response is Inadequate".

Should the Presiding Officer decide for some reason not to strike the Motion to Compel, OOCL seeks a fair opportunity to respond thereto. This means that Respondents should be given, if necessary, an additional 45 pages for their reply, to match SEA's, and given the length of SEA's Motion, Respondents should be given seven days from the date of the Presiding Officer's Order to submit their response.² Complainant's suggestion of allowing additional pages, but not additional time makes no sense, as the time is needed precisely to address Complainant's additional pages and arguments.

Respondents also request that Complainant's time to reply to this Motion to Strike be shortened to one day, as the normal date for responding would be well past the deadline as to

² Although Respondents believe the entire Motion to Compel should be stricken, should the Presiding Officer decide to strike only the 18 pages of supplemental argument, Respondents request the same 18 pages, rather than 45, excluding non-argumentative appendices.

which relief is sought.

CONCLUSION

The Motion should be stricken *in toto*. But if the Presiding Officer decides not to strike the Motion to Compel in its entirety, the playing field should be leveled by granting Respondents 45 additional pages to respond to the Motion to Compel and extension of the date for a response 7 days from the date that the Presiding Officer issues his Order.

Dated: January 27, 2026

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that on this 27th of January, 2026, a true and correct copy of this document was served upon the following by e-mail:

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